

THIS SAFTE AND THE CERTIFICATE TOKEN MAY BE SUBJECT TO ANY OR ALL OF THE RESTRICTIVE LEGENDS SET FORTH AT THE END OF THIS SAFTE. PLEASE CHECK THE “LEGENDS” METADATA FIELD OF THE CERTIFICATE TOKEN FOR THE CURRENTLY APPLICABLE RESTRICTIVE LEGENDS.

## SAFTE (Simple Agreement for Future Tokens and/or Equity)

THIS CERTIFIES THAT in exchange for the payment by the Investor of the Purchase Amount pursuant to a Cyber-Securities Purchase Agreement entered into by the Investor and the Company (the “**Purchase Agreement**”), the Company issues to the Investor the right to (1) certain Protocol Tokens to be issued by the Token Issuer, and (2) certain of the Company’s Capital Securities, in each case, on the terms and subject to the conditions set forth in this Simple Agreement for Future Tokens and/or Equity (this “**SAFTE**”).

This SAFTE is a certificated security (as defined in the Uniform Commercial Code (UCC) § 8-102(a)(4)) represented by a non-fungible blockchain token issued by the Company (the “**Certificate Token**”). The Certificate Token is intended to function as a securities certificate (as defined in UCC §8-102(a)(16)) representing this SAFTE.

The Certificate Token was issued by the Company’s instance of the MetaLeX certificated security token protocol at <https://github.com/MetaLex-Tech/cybercorps-contracts/>, including an instance of `CyberCertPrinter.sol` (such instance, the “**CyberCertPrinter Smart Contract**”). Specific details of this SAFTE are stored in a mapping of the `CertificateDetails` struct to the `tokenId` of the Certificate Token in the memory of the CyberCertPrinter Smart Contract (the “**Mapping**”), including details providing the meanings of certain capitalized terms herein as set forth in Section 2.

The Company has certain administrative controls over the Certificate Token, including controls over the transferability of the Certificate Token and the power to set the status of the Certificate Token to “void” for any reason or no reason, in its sole discretion. In the event that the Company sets the status of the Certificate Token to “void” the Company will either issue the Investor a new Certificate Token or a paper certificate representing this SAFTE, or will provide for representation of this SAFTE in book-entry form on the books and records of the Company. In the event of a persistent “contentious hardfork” (as commonly understood in the blockchain industry) of any of the relevant blockchain systems that results in copies of the Certificate Token on each such blockchain system, the Company shall determine which copy of the Certificate Token is canonical in its sole and absolute discretion, and the Company may void, and shall not be required to honor any claims on, or afford any rights to, the copy of the Certificate Token determined by the Company to be non-canonical. In the event that the blockchain system determined by the Company to be canonical following a contentious hardfork itself subsequently undergoes its own contentious hardfork, this provision shall likewise apply to such contentious hardfork, *mutatis mutandis*.

## 1. Events

### 1.1 Token Launch Event.

- (a) If there is a Token Launch Event before the termination of this SAFTE, this SAFTE will automatically convert into the right of the Investor to receive from the Company or another Token Issuer, upon the terms and subject to the conditions set forth in this SAFTE, the Investor’s Portion of the Allocable Protocol Tokens. The Allocable Protocol Tokens to be received by the Investor hereunder are referred to herein as the “**Investor Tokens**”.
- (b) The Investor acknowledges and agrees that the use cases and other properties of the Protocol Tokens are still under development; accordingly, conversion of this SAFTE into Protocol Tokens may (at the election of the Company or another Token Issuer) require the Investor’s execution of certain additional agreements, which may include governance terms and conditions, transfer restrictions, use commitments and other matters, in each case, as reasonably determined by the Company in good faith to be necessary

### 1.2 Equity Financing.

- (a) If there is an Equity Financing before the expiration or termination of this SAFTE, on the initial closing of such Equity Financing, this SAFTE will automatically convert into the greater of: (1) the number of Standard Preferred Capital Securities equal to the Purchase Amount divided by the lowest price per-security of the Standard Preferred Capital Securities sold in the Equity Financing; and (2) the number SAFTE Preferred Capital Securities equal to the Purchase Amount divided by the SAFTE Equity Price.
- (b) In connection with the automatic conversion of this SAFTE into Standard Preferred Capital Securities or SAFTE Preferred Capital Securities, the Investor will execute and deliver to the Company all of the transaction documents related to the Equity Financing; provided, that such documents (i) are the same documents to be entered into with the purchasers of Standard Preferred Capital Security, with appropriate variations for the SAFTE Preferred Capital Security if applicable, (ii) have customary exceptions to any drag-along applicable to the Investor, including (without limitation) limited representations, warranties, liability and indemnification obligations for the Investor, and (iii) rights to receive Protocol Tokens on substantially the same terms as those set forth in Section 1.1.

### 1.3 Liquidity Event.

- (a) If there is a Liquidity Event before the termination of this SAFTE, the Investor will automatically be entitled (subject to the liquidation priority set forth in Section 1.5 below) to receive a portion of the Proceeds, due and payable to the Investor immediately prior to, or concurrent with, the consummation of such Liquidity Event, equal to the greater of (i) the Purchase Amount (the “**Cash-Out Amount**”) or (ii) the amount payable on the number of Common Capital Securities equal to the Purchase Amount divided by the Liquidity Price (the “**Conversion Amount**”). If any of the Company’s securityholders are given a choice as to the form and amount of Proceeds to be received in a Liquidity Event, the Investor will be given the same choice, *provided* that the Investor may not choose to receive a form of consideration that the Investor would be ineligible to receive as a result of the Investor’s failure to satisfy any requirement or limitation generally applicable to the Company’s securityholders, or under any applicable laws.
- (b) Notwithstanding the foregoing, in connection with a Change of Control intended to qualify as a tax-free reorganization, the Company may reduce the cash portion of Proceeds payable to the Investor by the amount determined by its board of directors in good faith for such Change of Control to qualify as a tax-free reorganization for U.S. federal income tax purposes, provided that such reduction (A) does not reduce the total Proceeds payable to such Investor and (B) is applied in the same manner and on a pro rata basis to all securityholders who have equal priority to the Investor under Section 1.5.
- (c) In connection with any Change of Control, the Company shall ensure that the Investor shall have the right to receive Protocol Tokens on terms at least as favorable to Investor as those set forth in Section 1.1.

1.4 Dissolution Event. If there is a Dissolution Event before the termination of this SAFTE, the Investor will automatically be entitled (subject to the liquidation priority set forth in Section 1.5 below) to receive, out of the cash and other assets that are proceeds from the Dissolution Event and legally available for distribution, the Purchase Amount, due and payable to the Investor immediately prior to the consummation of the Dissolution Event. If immediately prior to the consummation of the Dissolution Event, the assets of the Company that remain legally available for distribution to the Investor and all holders of all other SAFTEs (the “**Dissolving Investors**”), as determined in good faith by the Company’s board of directors, are insufficient to permit the payment to the Dissolving Investors of their respective purchase amounts under their respective SAFTEs, then the remaining assets of the Company legally available for distribution will be distributed in U.S. Dollars or dollar-equivalent stablecoins in accordance with Section 1.5 hereof.

1.5 Liquidation Priority. In a Liquidity Event or Dissolution Event, this SAFTE is intended to operate like standard non-participating Preferred Capital Securities. The Investor’s right to receive its Cash-Out Amount shall be:

- (a) junior to payment of outstanding indebtedness and creditor claims, including contractual claims for payment and convertible promissory notes (to the extent such convertible promissory notes are not actually or notionally converted into Capital Securities);

- (b) on par with payments for Simple Agreements for Future Equity, Preferred Capital Securities, and other SAFTEs, and, if the applicable Proceeds are insufficient to permit full payments to the Investor in respect of this SAFTE and the holders of such securities, the applicable Proceeds will be distributed pro rata to the Investor and such other securities in proportion to the full payments that would otherwise be due; and;
- (c) senior to payments for the Capital Securities.

The Investor's right to receive its Conversion Amount is (A) on par with payments for Common Capital Securities, SAFEs, Preferred Capital Securities, and other SAFTEs who are also receiving Conversion Amounts or Proceeds on a similar as-converted-to-Common Capital-Securities basis, and (B) junior to payments described in clause '(a)' and '(b)' above (in the latter case, to the extent such payments are Cash-Out Amounts or similar liquidation preferences).

- 1.6 Termination. This SAFTE will automatically terminate (without relieving any party of any obligations arising from a prior breach of or non-compliance with this SAFTE) immediately following the earliest to occur of: (i) the time no further Capital Securities or Allocable Protocol Tokens are issuable to the Investor under this SAFTE; or (ii) the payment, or setting aside for payment, of amounts due the Investor pursuant to Section 1.3 or Section 1.4. Terms of this SAFTE which are by their nature intended to survive termination (including without limitation the Company's representations pursuant to Section 4) shall remain in force after termination
- 1.7 Conditions. As a condition precedent to the issuance to the Investor of any Tokens pursuant to Section 1.1, Preferred Capital Security pursuant to Section 1.2, or payments pursuant to Sections 1.3 and 1.4, the representations and warranties of the Investor set forth in Section 5 must be true and correct in all material respects as of immediately prior to such issuance or payment, as the case may be. The Investor shall notify the Company in writing as promptly as practicable (and in any event prior to any such issuance) if Investor becomes aware that any of the representations and warranties in Section 5 become inaccurate during the term of this SAFTE. In the event that the condition precedent set forth herein is not satisfied and the Company does not (in its sole discretion) wish to waive such condition, the Company shall return the Purchase Amount to the Investor as promptly as reasonably practicable; provided, however, that the Company shall not be required to return the Purchase Amount if such failure to satisfy the condition arises from fraud committed by the Investor, and provided further, that the Company shall not be required to return the Purchase Amount if any Tokens have been issued to the Investor at such time

## 2. Definitions

- 2.1 "**Affiliate**" means, with respect to any specified individual or entity, any other individual or entity that, directly or indirectly, controls, is controlled by, or is under common control with such individual or entity, including without limitation any general partner, managing member, officer, Founder, director or trustee of such individual or entity.
- 2.2 "**Allocable Protocol Tokens**" means the total maximum number of Protocol Tokens that have been, are or will be sold, used, transferred, awarded, granted distributed, created, generated, minted or otherwise come into existence, whether temporarily or permanently, by, at the direction of, on behalf of or with the affirmative participation, consent or approval of the Company or a Token Issuer. Without limiting the generality of the foregoing, "Allocable Protocol Tokens" shall exclude Protocol Tokens that meet any one or more of the following conditions:
  - (a) such Protocol Tokens are Representational Protocol Tokens, are Collectible NFTs, were created for testing purposes only, or at the time of their creation could not reasonably be expected to have or acquire material value;
  - (b) such Protocol Tokens are in excess of the Initial Protocol Tokens and were created primarily as a result of an irregular state change, reorganization, fork, liveness failure, consensus failure or hack, attack or exploit of a Protocol Instance or blockchain system on which a Protocol Instance is deployed, provided that the foregoing was not initiated by, at the direction of, on behalf of or with the affirmative participation, consent or approval of the Company;

- (c) such Protocol Tokens are primarily associated with a Third-Party Protocol Instance;
- (d) such Protocol Tokens are in excess of the Initial Protocol Tokens and were minted by, at the direction of or with the approval of a DAO comprising holders of Protocol Tokens (and not at the direction of the Company, Company Representatives, or a Token Issuer); or
- (e) it is beyond the commercially reasonable ability of the Company or a Token Issuer to stop such Protocol Tokens from being created or to obtain a portion of such Protocol Tokens which could be distributed to Investor.

For the avoidance of doubt, the Allocable Protocol Tokens shall initially be the maximum number of Protocol Tokens that, as of the Token Launch Event, exist or are expressly permitted by the applicable Protocol Instance to come into existence (the “*Initial Protocol Tokens*”).

- 2.3 “**Board of Directors**” means, if the Company is a corporation, the board of directors of the Company, and, if the Company is another type of entity, the person or body of persons with comparable authority to the board of directors of a corporation.
- 2.4 “**Blockchain System**” means the combination of (a) a blockchain or distributed ledger or other similar technology; and (b) a network of devices operating software clients or software applications that jointly or individually store, validate, process transactions with respect to, update, resolve forks with respect to and otherwise maintain, read from and write to such blockchain.
- 2.5 “**Capital Securities**” means the shares of capital stock, capital shares, membership interests, or similar equity securities of the Company, including the Common Capital Securities and the Preferred Capital Securities,
- 2.6 “**Change of Control**” means (i) a transaction or series of related transactions in which any “person” or “group” (within the meaning of Section 13(d) and 14(d) of the Securities Exchange Act of 1934, as amended), becomes the “beneficial owner” (as defined in Rule 13d-3 under the Securities Exchange Act of 1934, as amended), directly or indirectly, of more than 50% of the outstanding voting securities of the Company having the right to vote for the election of members of the Board of Directors, (ii) any reorganization, merger or consolidation of the Company, other than a transaction or series of related transactions in which the holders of the voting securities of the Company outstanding immediately prior to such transaction or series of related transactions retain, immediately after such transaction or series of related transactions, at least a majority of the total voting power represented by the outstanding voting securities of the Company or such other surviving or resulting entity or (iii) a sale, lease or other disposition of all or substantially all of the assets of the Company.
- 2.7 “**Collectible NFTs**” means non-fungible tokens (and all associated metadata) having primarily artistic, souvenir or community-building purposes and not essential to the governance or use of the Protocol.
- 2.8 “**Common Capital Securities**” means the ordinary shares, shares of common stock, membership interests that are pro rata and pari passu to one another and do not have preferences over any other such membership interests, or similar equity securities of the Company, as the case may be, depending on the Company’s entity type and jurisdiction of formation.
- 2.9 “**Company**” means the entity identified by the values of the `cyberCORPName`, `cyberCORPJurisdiction`, and `cyberCORPType` variables stored in the Mapping.
- 2.10 “**Company Address**” means the mailing and/or electronic address stored in the value of the `contactDetails` variable stored in the value of the `companyDetails` variable stored in the Mapping.
- 2.11 “**Company Capitalization**” means the sum (on an as-converted to Common Capital Securities basis, and without double-counting, in each case), immediately prior to the Equity Financing, of:
  - (a) all Capital Securities issued and outstanding;
  - (b) all Converting Securities;

- (c) all (i) issued and outstanding Options and (ii) Promised Options; and
  - (d) the Unissued Option Pool, except that any increase to the Unissued Option Pool in connection with the Equity Financing shall only be included to the extent that the number of Promised Options exceeds the Unissued Option Pool prior to such increase.
- 2.12 “**Company Representatives**” means the Company’s investors, stockholders, Founders, employees, officers, directors and advisors or other consultants.
- 2.13 “**Company Reserve of Allocable Protocol Tokens**” means the aggregate number of Allocable Protocol Tokens allocated or distributed, reserved for distribution or otherwise Transferred, in a single transaction or series of related transactions, to the Company and the Insiders to be owned (or the benefits or proceeds of sales thereof to be received or owned) beneficially or of record by the Company or the Insiders, which shall be no less than the Minimum Company Reserve.
- 2.14 “**Converting Securities**” means this SAFTE and other convertible securities issued by the Company, including but not limited to: (i) other SAFTEs; (ii) convertible promissory notes and other convertible debt instruments; and (iii) convertible securities that have the right to convert into Capital Securities.
- 2.15 “**Direct Listing**” means the Company’s initial listing of its Common Capital Securities (other than Common Capital Securities not eligible for resale under Rule 144 under the Securities Act) on a national securities exchange by means of an effective registration statement on Form S-1 filed by the Company with the SEC that registers existing Capital Securities of the Company for resale, as approved by the Board of Directors. For the avoidance of doubt, a Direct Listing shall not be deemed to be an underwritten offering and shall not involve any underwriting services.
- 2.16 “**Dissolution Event**” means (i) a voluntary termination of operations of the Company, (ii) a general assignment for the benefit of the Company’s creditors or (iii) any other liquidation, dissolution or winding up of the Company (other than Liquidity Event), whether voluntary or involuntary.
- 2.17 “**Dividend Amount**” means, with respect to any date on which the Company pays a dividend on its outstanding Common Capital Securities, the amount of such dividend that is paid per Common Capital Security multiplied by (x) the Purchase Amount divided by (y) the Liquidity Price (treating the dividend date as a Liquidity Event solely for purposes of calculating such Liquidity Price).
- 2.18 “**Equity Financing**” means a bona fide transaction or series of transactions with the principal purpose of raising capital, pursuant to which the Company issues and sells Preferred Capital Security at a fixed valuation, including but not limited to, a pre-money or post-money valuation.
- 2.19 “**Equity Ratio**” means, with respect to each Investor, the ratio (i) that the number of Common Capital Securities of the Company then held by such Investor, including any Common Capital Securities issued to such Investor or issuable to such Investor upon conversion of Preferred Capital Securities or other outstanding securities of the Company (treating any Simple Agreements for Future Equity or convertible note as having converted at the valuation cap thereof) bears to (ii) the total number of outstanding Common Capital Securities of the Company after giving effect to the conversion or exercise of all outstanding securities into Common Capital Securities of the Company (treating any Simple Agreements for Future Equity or convertible note as having converted at the valuation cap thereof), in each case, as of the initial Token Launch Event of such Token; *provided, however*, that if the Investor has assigned, conveyed or Transferred this SAFTE to another Person as permitted by Section 6.4, in no event shall the aggregate Portion of the original Investor and such permitted transferees exceed the Portion that would have been attributable to the original Investor if this SAFTE had not been assigned, conveyed or Transferred.
- 2.20 “**Founder**” means each employee, independent contractor, service provider, director, officer, or holder of equity securities of the Company or Token Issuer who: (a) made material contributions to the Company’s or a Token Issuer’s intellectual property (including business plans or strategies) or material business relationships; (b) receives or is entitled to receive at least five percent of the Allocable Protocol Tokens or 5% of the equity

securities of the Company or a Token Issuer; and (c) has been identified as or would otherwise reasonably be considered to be a founder of the Company or a Token Issuer.

- 2.21 **“Governing Jurisdiction”** means the jurisdiction identified by the value of the `governingJurisdiction` variable stored in the `legalDetails` variable stored in the Mapping.
- 2.22 **“Initial Public Offering”** means the closing of the Company’s first firm commitment underwritten initial public offering of Common Capital Securities pursuant to a registration statement filed under the Securities Act.
- 2.23 **“Insider”** means any current or former investors, stockholders, Founders, employees, officers, directors and advisors or other consultants of the Company and any Token Issuer (if other than the Company).
- 2.24 **“Investor”** means the individual or entity identified by the value of the `investorName` variable stored in the Mapping, and, if an entity, the values of the `investorType` and `investorJurisdiction` variables stored in the Mapping.
- 2.25 **“Investor Address”** means the mailing and/or electronic address stored in the value of the `contactDetails` variable stored in the value of the `investorDetails` variable stored in the Mapping.
- 2.26 **“Liquidity Capitalization”** means the sum (on an as-converted to Common Capital Securities basis, and without double-counting, in each case), immediately prior to the Liquidity Event, of:
- (a) all Capital Securities issued and outstanding;
  - (b) all Converting Securities other than any SAFTEs or other convertible securities (including without limitation Preferred Capital Securities) where the holders of such securities are receiving Cash-Out Amounts or similar liquidation preference payments in lieu of Conversion Amounts or similar “as-converted” payments; and
  - (c) all (i) issued and outstanding Options and (ii) to the extent receiving Proceeds, Promised Options; but excluding the Unissued Option Pool.
- 2.27 **“Liquidity Event”** means a Change of Control, a Direct Listing or an Initial Public Offering.
- 2.28 **“Liquidity Price”** means the price per security equal to the Post-Money Equity Valuation Cap divided by the Liquidity Capitalization.
- 2.29 **“Majority-in-Interest”** means the investors under SAFTEs having the same Post-Money Valuation Cap and Protocol Valuation Cap whose SAFTEs have a total purchase amount greater than 50% of the aggregate purchase amounts of all of such SAFTEs.
- 2.30 **“Minimum Company Reserve”** means an amount of Tokens equal to: (a) the minimum percentage of Allocable Protocol Tokens to be included in the Company Reserve of Allocable Protocol Tokens identified by the value stored in the `minCompanyReserve` variable of the Mapping, if applicable; of (b) the Allocable Protocol Tokens.
- 2.31 **“Options”** means options to purchase securities, restricted stock awards or purchases, RSUs, SARs, warrants to purchase securities or similar securities, vested or unvested.
- 2.32 **“Portion”** means, with respect to each Investor and any Allocable Protocol Token, such amount of Allocable Protocol Tokens as shall equal (without double counting):
- (a) if the Token Calculation Method is `equityProRataToTokenSupply`, such Investor’s Equity Ratio of the Allocable Protocol Tokens; *provided, however*, that if the `tokenPremiumMultiplier` is greater than one, such amount of Tokens shall equal such Investor’s Equity Ratio of the Allocable Protocol Tokens *divided by* the Token Valuation Premium;

- (b) if the Token Calculation Method is `equityProRataToCompanyReserve`, such Investor's Equity Ratio of the Company Reserve of Allocable Protocol Tokens; or
- (c) if the Token Calculation Method is `dollarProRataToProtocolVal`, such Investor's Protocol Ratio of the Allocable Protocol Tokens.

- 2.33 **"Post-Money Equity Valuation Cap"** means an amount of U.S. dollars equal to the value of the `issuerUSDValuationAtTimeofInvestment` variable stored in the Mapping.
- 2.34 **"Preferred Capital Securities"** means the preferred shares, preference shares, shares of preferred stock, membership interests that have liquidation priorities over or other similar preferences over ordinary membership interests, or similar equity securities of the Company, as the case may be, depending on the Company's entity type and jurisdiction of formation.
- 2.35 **"Proceeds"** means cash and other assets (including without limitation stock consideration) that are proceeds from the Liquidity Event or the Dissolution Event, as applicable, and legally available for distribution.
- 2.36 **"Promised Options"** means promised but ungranted Options that are the greater of those (i) promised pursuant to agreements or understandings made prior to the execution of, or in connection with, the term sheet or letter of intent for the Equity Financing or Liquidity Event, as applicable (or the initial closing of the Equity Financing or consummation of the Liquidity Event, if there is no term sheet or letter of intent), (ii) in the case of an Equity Financing, treated as outstanding Options in the calculation of the Standard Preferred Capital Security's price per security, or (iii) in the case of a Liquidity Event, treated as outstanding Options in the calculation of the distribution of the Proceeds.
- 2.37 **"Protocol"** means all protocols, software and technology constituting a part of or suitable for deployment on a Blockchain System that are primarily developed by, on behalf of, at the direction of or with the affirmative participation, consent or approval of, or making permitted use of any money, assets or intellectual property of, the Company
- 2.38 **"Protocol Instance"** means any implementation of the Protocol in runtime production software intended for commercial use, including bytecode compiled from the Protocol that is associated with a unique network address and memory/storage state on a blockchain 'mainnet' system (i.e., a 'smart contract').
- 2.39 **"Protocol Ratio"** means the ratio of the Purchase Amount to the Protocol Valuation Cap.
- 2.40 **"Protocol Tokens"** means all blockchain tokens that (i) would reasonably be expected to have material pecuniary value; and (ii) have or confer or are intended or generally understood to have or to confer any rights, powers or benefits that govern or control, or capture, track or correlate with the value or adoption of, any Protocol or Protocol Instance (other than solely a Third-Party Protocol Instance) or any funding, personnel or resources dedicated or reserved primarily for maintenance, development, marketing, operation or improvement of any Protocol or Protocol Instance (other than solely a Third-Party Protocol Instance) (including any Blockchain Tokens conferring any rights, powers or benefits with respect to a DAO for governing the Protocol or a Protocol Instance (other than a Third-Party Protocol Instance) or any similar entity, fund or set, group or association of persons).
- 2.41 **"Protocol Valuation Cap"** means an amount of U.S. dollars equal to the value of the `protocolUSDValuationAtTimeofInvestment` variable stored in the Mapping.
- 2.42 **"Purchase Amount"** means an amount of U.S. dollars equal to the value of the `investmentAmountUSD` variable stored in the Mapping.
- 2.43 **"Representational Protocol Tokens"** means any type of Protocol Token that:
- (a) without reduction or dilution of the value of or economic, governance or other powers and benefits of the type Protocol Tokens issued pursuant to this SAFTE, is intrinsically derived from, designed to represent or be convertible with the type of Protocol Tokens issued pursuant to this SAFTE;



- (b) cannot be minted, generated, credited, assigned or otherwise come into existence without staking, converting, depositing, locking, burning or otherwise removing from circulation a proportional amount of the type of Protocol Tokens issued pursuant to this SAFTE; and
- (c) cannot remain in circulation except while the proportional amount referred to in the preceding clause ‘(b)’ remains out of circulation.

2.44 “**SAFTE**” means a Simple Agreement for Future Tokens and/or Equity or other agreement between the Company and an investor providing the investor with the right to receive equity and/or Protocol Tokens in exchange for a purchase price, in each case, that is entered into prior to the expiration or termination of this SAFTE.

2.45 “**SAFTE Preferred Capital Securities**” means the Preferred Capital Securities to be issued to the Investor in an Equity Financing, having the identical rights, privileges, preferences and restrictions as the Standard Preferred Capital Securities, other than with respect to: (i) the per-share liquidation preference and the initial conversion price for purposes of price-based anti-dilution protection, which will equal the SAFTE Equity Price; and (ii) the basis for any dividend rights, which will be based on the SAFTE Equity Price.

2.46 “**SAFTE Equity Price**” means the price per security equal to the Post-Money Equity Valuation Cap divided by the Company Capitalization.

2.47 “**Securities Act**” means the United States Securities Act of 1933, as amended.

2.48 “**Standard Preferred Capital Security**” means the Preferred Capital Securities issued to the investors investing new money in the Company in connection with the initial closing of the Equity Financing.

2.49 “**Third-Party Protocol Instance**” means a Protocol Instance that:

- (a) insofar as it differs from other Protocol Instances, was not directly or indirectly developed or deployed by, on behalf of, at the direction of or with the affirmative participation, consent or approval of, or using any resources of, the Company or a Token Issuer; and
- (b) is not directly or indirectly endorsed or supported by or on behalf of the Company.

2.50 “**Token Calculation Method**” means the method of calculating the number of Tokens the Investor is entitled to that is identified in the value of the `tokenCalculationMethod` variable of the Mapping. If such number of Tokens is to be calculated based on the Investor’s pro rata equity ownership of the Company relative to the Allocable Protocol Tokens, such value shall be `equityProRataToTokenSupply`. If such number of Tokens is to be calculated based on the Investor’s pro rata equity ownership of the Company relative to a portion of the Allocable Protocol Tokens reserved for the Company and its personnel and investors (the ‘Company Reserve of Allocable Protocol Tokens’ as defined in this SAFTE), such value shall be `equityProRataToCompanyReserve`. If such number of Tokens is to be calculated based on the Investor’s Purchase Amount relative to the Protocol Valuation Cap, such value shall be `dollarProRataToProtocolVal`.

2.51 “**Token Launch Event**” means the time that any Token Issuer first issues any Allocable Protocol Tokens to non-Insiders (other than any other Token Issuer).

2.52 “**Token Valuation Premium**” means the premium of the valuation of the Allocable Protocol Tokens over the valuation of the Company identified by the value stored in the `tokenPremiumMultiplier` variable of the Mapping, if applicable.

2.53 “**Tokens**” means any cryptocurrency, decentralized application tokens, protocol tokens, blockchain-based assets or other cryptofinance coins, tokens or similar digital assets that is implemented exclusively or primarily on a Blockchain System.

2.54 “**Token Issuer(s)**” means (i) the Company, (ii) the Company’s present and future parent(s), subsidiaries and Affiliates, and their respective successors and assigns, (iii) any foundation, trust or similar entity that (x) has



entered or will enter into a services contract, agreement, relationship, understanding or arrangement with the Company or an Affiliate of the Company to develop a blockchain protocol or smart contracts associated with the Tokens or (y) issues, distributes, creates, generates, mints, or produces Protocol Tokens and is related to, or formed by, the Company, or its present or future parent(s) or subsidiaries with respect to software code developed by the Company or any of the Company's present and future Founders, parents, subsidiaries and Affiliates, and (iv) to the extent issuing Tokens materially related to the Company's business, any current or future Company Representative or Affiliate thereof.

- 2.55 ***“Transfer”*** means (A) the direct or indirect sale, assignment, delegation, pledge, charge, lending, hypothecation, encumbrance, creation of a swap or other derivative with respect to, or transfer or disposition of this SAFTE, any Investor Token or any interest, right, claim, obligation or liability under this SAFTE or with respect to any Investor Token; or (B) the Investor entering into or becoming subject to a contract or agreement, written or oral, that would cause any of the foregoing to occur. Without limiting the generality of the foregoing, ***“Transfer”*** shall include entering into any short position, any “put equivalent position” or “call equivalent position”, option or contract to sell or purchase, or swap or other arrangement that transfers to another, in whole or in part, any of the economic or other consequences of ownership of any Investor Tokens or this SAFTE, in each case, whether any such transaction is to be settled by delivery of such Investor Tokens, other virtual currencies or virtual mediums of exchange, in cash, or otherwise. Notwithstanding the foregoing, it shall not be deemed a ***“Transfer”*** of Investor Tokens for the Investor to stake Investor Tokens for the Investor's own account in accordance with the mechanisms enabled by the Protocol or a Protocol Instance (other than a third-party Protocol Instance) (if any); *provided, however*, that any use of a staking services provider to assist with the foregoing must comply with all of the following conditions:
- (a) if the service provider will, at any time, have custody over or any power to effect or prevent transactions in any Investor Tokens (e.g., because the service provider holds one or more private keys associated with any public key address(es) of the Investor Tokens or has authority or power to call functions in a “smart contract” in which any Investor Tokens are held), such custody or power must be in the capacity of a fiduciary, trustee, escrow agent or bailment agent for the Investor and not that of a borrower, purchaser or counterparty to a loan secured by the Investor Tokens, an option to purchase the Investor Tokens, or a futures or swap arrangement relating to the Investor Tokens;
  - (b) the service provider must be under contract with the Investor to return the Investor Tokens (other than any Investor Tokens lost due to “slashing penalties” incurred by the staking protocol) upon demand (except for any mandatory un-staking delays imposed by the staking protocol); and
  - (c) if, pursuant to a “liquid staking” arrangement or otherwise, the service provider provides to or for the Investor or the Investor otherwise creates or receives any tokens, certificates of deposit or other derivatives or instruments or Representational Protocol Tokens representing the staked Investor Tokens, no Transfer is made of such tokens, certificates of deposits or other derivatives or instruments or Representational Protocol Tokens, except to the extent that the corresponding Investor Tokens have become unlocked in accordance with the preceding clause ‘(b)’.
- 2.56 ***“Unissued Option Pool”*** means all Capital Securities that are reserved, available for future grant and not subject to any outstanding Options or Promised Options (but in the case of a Liquidity Event, only to the extent Proceeds are payable on such Promised Options) under any equity incentive or similar Company plan.
- 2.57 ***“Unlocking Cliff Percentage”*** means the percentage of the Investor Tokens that unlock (i.e., cease to be Transfer-restricted under Section 3) at the Unlocking Cliff, identified by the value of the `unlockingCliffPercentage` variable stored in the Mapping.
- 2.58 ***Unlocking Cliff Period*** means the number of time units of the Unlocking Interval Type from and after the Unlocking Start Time after which some number of Tokens first become unlocked (i.e., cease to be Transfer-restricted under Section 3), identified by the value of the `unlockingCliffPeriod` variable stored in the Mapping.
- 2.59 ***“Unlocking Interval Type”*** means the type of time interval defining each Token unlocking event (i.e., event of ceasing to be Transfer-restricted under Section 3) within the Unlocking Period, identified by the value of the

**UnlockingIntervalType** variable stored in the Mapping, which value may be **secondly** (i.e., each second), **hourly**, **daily**, **monthly**, or **blockly** (i.e., a Token unlock occurs once in each block of the applicable blockchain system).

- 2.60 “**Unlocking Period**” means the number of time units of the Unlocking Interval Type from and after the Unlocking Start Time required for all of the Investor Tokens to become fully unlocked (i.e., ceasing to be Transfer-restricted under Section 3), identified by the value of the **unlockingPeriod** variable stored in the Mapping.
- 2.61 “**Unlocking Start Time**” means the starting time from which the unlock period of the Tokens (i.e., the period of time over which Transfer restrictions under Section 3 lapse) is calculated, identified by the value of the **unlockStartTimeType** variable stored in the Mapping (**agreementExecutionTime** for the time that this SAFTE is entered into, **tgeTime** for the time of the Token Launch Event, or **setTime** for a particular specified time) and the value of the **unlockStartTime** variable stored in the Mapping.

### 3. Lockup.

- 3.1 The Investor Tokens shall be subject to the restrictions on Transfer set forth in this Section 3 (the “**Transfer Restrictions**”). The Investor shall not, without the prior written consent of the Company, Transfer any Investor Token, except to the extent such Investor Token has become unlocked pursuant to Section 3.2 as modified by Section 3.3 and Section 3.4.
- 3.2 Subject to Section 3.3 and Section 3.4, the Investor Tokens shall become Transferable (“**unlock**”) ratably in accordance with the Unlocking Interval Type during the period beginning at the Unlocking Start Time and ending at the end of the Unlocking Period, except that: (a) such ratable unlocking shall be suspended from the Unlocking Start Time until the end of the Unlocking Cliff Period; and (b) the Unlocking Cliff Percentage of the Investor Tokens shall unlock at the end of the Unlocking Cliff Period.
- 3.3 Notwithstanding Section 3.2, but subject to Section 3.4:
- (a) The Company may (but shall have no obligation to), in whole or in part, waive, shorten or terminate the Unlocking Period, accelerate the unlocking of Investor Tokens or reduce the Transfer restrictions applying during the Unlocking Period, provided that each such waiver, shortening, termination, acceleration or reduction applies on a pro rata, pari passu basis to all holders of SAFTEs.
  - (b) The Company may extend the Unlocking Period or the Unlocking Cliff Period, or reduce the Unlocking Cliff Percentage, or modify the Unlocking Interval Type, in each case:
    - (i) to the extent required by applicable law, as determined by the Board of Directors (or equivalent governing authority) of the Company in good faith and on the advice of external legal counsel; or
    - (ii) as approved by both the Company and the Majority-in-Interest.
- 3.4 Notwithstanding Section 3.2 and Section 3.3: (a) no Transfer Restrictions shall apply to the Investor Tokens unless all Allocable Protocol Tokens that are issued (directly or indirectly) to any current or former investors, securities holders, Founders, employees, officers, directors and advisors and other consultants of the Company and any Token Issuer are subject to the Transfer Restrictions at least as onerous as those applicable to the Investor Tokens; (b) any discretionary waiver or termination of any Transfer restrictions that are approved by the Board of Directors of the Company or any Token Issuer with respect to any Insider shall apply to each holder similar SAFTEs or other rights to receive Allocable Protocol Tokens from the Company or another Token Issuer, pro rata, based on the number of Allocable Protocol Tokens such holder will be entitled to; and (c) except to the extent prohibited by applicable law (determined in accordance with Section 3.3(b)(i)), during any period any Investor Tokens are subject to Transfer Restrictions, each such holder may: (i) Transfer any Investor Tokens to any Affiliate of such holder and (ii) exercise the voting and other governance rights or powers linked to such Investor Tokens or deploy them towards staking in accordance with the governance and other rules of the Protocol or Protocol Instance (other than a Third-Party Protocol Instance).

- 3.5 If the Company or any Token Issuer determines that it is necessary or desirable to impose programmatic Transfer Restrictions on the Tokens, then the Company and the Majority-in-Interest shall work in good faith to identify a mutually agreed (such agreement not to be unreasonably conditioned, withheld or delayed) smart contract through which the Transfer Restrictions set forth in this Section 3 can be programmatically enforced, provided that such smart contract shall be immutable (or subject to mutual governance by the Company and Majority-in-Interest) and not be controlled by the Company, any Token Issuer or any Affiliate thereof and shall otherwise comply with the terms of this SAFTE.
- 3.6 Any attempted or purported Transfer that would breach, violate or fail to comply with this Section 3 shall be null and void *ab initio*. Forfeiture and relinquishment of all Investor Tokens, and rights to Investor Tokens and other rights under this SAFTE, shall be deemed liquidated damages for any attempted or actual breach of the Transfer Restrictions, and the Company or any Token Issuer may freeze, refuse to issue, blacklist under the relevant Protocol Instances, or otherwise seek to claim, reclaim, or limit the rights, benefits, or powers with respect to, such Investor Tokens without any consent of the Investor or court order.
- 3.7 For the avoidance of doubt, Tokens purchased after the Token Launch Event or received by Investor as a reward for staking Investor Tokens shall not be subject to the Transfer Restrictions.
4. **Company Representations.** The Company hereby represents and warrants, to and for the benefit of the Investor, as of the date of this SAFTE and as of each date on which this SAFTE is converted, expires or terminates, as applicable, as follows:
  - 4.1 The Company is duly formed, validly existing and in good standing under the laws of its jurisdiction of formation, and has the power and authority to own, lease and operate its properties and carry on its business as now conducted.
  - 4.2 The execution, delivery and performance by the Company of this SAFTE is within the power of the Company and has been duly authorized by all necessary actions on the part of the Company (subject to the exceptions set forth in Section 4.4). This SAFTE constitutes a legal, valid and binding obligation of the Company, enforceable against the Company in accordance with its terms, except as limited by bankruptcy, insolvency or other laws of general application relating to or affecting the enforcement of creditors' rights generally and general principles of equity. To its knowledge, the Company is not in violation of (a) its current certificate of incorporation and bylaws, memorandum and articles of association, operating agreement or equivalent governing documents; (b) any material statute, rule or regulation applicable to the Company or (c) any material debt or contract to which the Company is a party or by which it is bound, where, in each case, such violation or default, individually, or together with all such violations or defaults, could reasonably be expected to have a material adverse effect on the Company.
  - 4.3 The performance and consummation of the transactions contemplated by this SAFTE do not and will not: (a) violate any material judgment, statute, rule or regulation applicable to the Company; (b) result in the acceleration of any material debt or contract to which the Company is a party or by which it is bound; or (c) result in the creation or imposition of any lien on any property, asset or revenue of the Company or the suspension, forfeiture, or nonrenewal of any material permit, license or authorization applicable to the Company, its business or operations.
  - 4.4 No consents or approvals are required in connection with the performance of this SAFTE, other than: (a) the Company's board of director, manager or similar entity governance approvals or approvals of holders of equity securities (in each case, as applicable); and (b) any qualifications or filings under applicable securities laws.
  - 4.5 To its knowledge, the Company owns or possesses (or can obtain on commercially reasonable terms) sufficient legal rights to all patents, trademarks, service marks, trade names, copyrights, trade secrets, licenses, information, processes and other intellectual property rights necessary for its business as now conducted and as currently proposed to be conducted, without any conflict with, or infringement of the rights of, others.
5. **Investor Representations.** Investor hereby represents and warrants, to and for the benefit of the Company, as of the date of this SAFTE and as of each date on which this SAFTE is converted, expires or terminates, as applicable, as follows:

- 5.1 The Investor has full legal capacity, power and authority to execute and deliver this SAFTE and to perform its obligations hereunder. This SAFTE constitutes a valid and binding obligation of the Investor, enforceable in accordance with its terms, except as limited by bankruptcy, insolvency or other laws of general application relating to or affecting the enforcement of creditors' rights generally and general principles of equity.
- 5.2 The Investor is not a "U.S. person" as that term is defined under Rule 902 of the Securities Act, is not entering into this SAFTE for the account of, or benefit of, any "U.S. person," has submitted and shall submit to the Company such further assurances of such status as may be reasonably requested by the Company and (i) agrees to assign, sell or transfer this SAFTE and the Certificate Token only in accordance with the provisions of Regulation S, pursuant to registration under applicable securities laws, or pursuant to an available exemption from registration and agrees not to engage in hedging transactions with regard to this SAFTE unless in compliance with applicable securities laws, (ii) agrees that this SAFTE and the Certificate Token shall contain a legend to the effect that transfer is prohibited except in accordance with the provisions of Regulation S, pursuant to registration under applicable securities laws or pursuant to an available exemption from registration and that hedging transactions involving this Agreement and the Tokens may not be conducted unless in compliance with applicable securities laws, and (iii) agrees that the Company may refuse to consent to any assignment of this Agreement not made in accordance with the provisions of Regulation S, pursuant to registration under applicable securities laws or pursuant to an available exemption from registration.
- 5.3 If the Investor is an individual, then the Investor resides in the state or province identified in the Investor Address. If the Investor is a partnership, corporation, limited liability company or other entity, then the office or offices of the Investor in which its principal place of business is identified in the Investor Address. All information provided to the Company and/or its third-party designees for purposes of the Company's KYC (Know-Your-Customer) and AML (Anti-Money-Laundering) checks, including its address and social security number or tax ID number, is accurate and complete. The funds used for the Purchase Amount were not and are not directly or indirectly derived from any activities that contravene any law, rule, regulation or order (including anti-money laundering laws and regulations) applicable to the Investor. None of: (i) the Investor; (ii) any person controlling or controlled by the Investor; (iii) any person having a beneficial interest in the Investor; or (iv) any person for whom the Investor is acting as agent or nominee in connection with this SAFTE is: (A) a country, territory, entity or individual named on an OFAC list as provided at <http://www.treas.gov/ofac>, or a person or entity prohibited under the OFAC Programs, regardless of whether or not they appear on the OFAC list; or (B) a senior foreign political figure, or any immediate family member or close associate of a senior foreign political figure.
- 5.4 Other than the representations and warranties of the Company expressly set forth in Section 4, neither the Investor nor any of its representatives or affiliates has relied on any statement, information, representation or warranty (including oral statements, due diligence presentations, etc.), or any omission of any statement, information, representation or warranty, made by the Company or any representative of the Company, in determining to enter into or perform this SAFTE or any of the transactions contemplated by this SAFTE. The Company is not making and has not made any representation, warranty or other statement intended to be relied upon or to give rise to any claim, obligation or liability based on the accuracy or completeness thereof, other than the representations and warranties of the Company expressly set forth in Section 4.
- 5.5 The Investor understands and agrees that Protocol Tokens have a limited function and purpose and may be difficult to sell or liquidate for money, monetary equivalents or other property and that the Company does not intend to establish or facilitate any secondary market to encourage or ensure any liquidity or other avenue for the disposition of Protocol Tokens. The Investor wishes to acquire and use Protocol Tokens for their intended purposes. The Investor is not seeking to acquire Protocol Tokens for any investment purpose beyond the efforts of the Company to bring about the Token Launch Event. The Investor understands that the uses of Protocol Tokens are still under development by the Company, that the terms and conditions of Protocol Tokens as they relate to the Company and its products, services and protocols are subject to the discretion of the Company and that Protocol Tokens may be governed by terms or service or other contracts and agreements to which the Investor and other Protocol Tokens holders may be become subject and which may be subject to change at the discretion of the Company.

## 6. Miscellaneous

- 6.1 Entire Agreement. This SAFTE sets forth the entire agreement and understanding of the parties relating to the subject matter herein and supersedes all prior or contemporaneous disclosures, discussions, understandings and agreements, whether oral or written, between them.
- 6.2 Use of Proceeds. The Purchase Amount shall be used to support research, product development, expansion of sales and marketing efforts, working capital and general corporate purposes.
- 6.3 Notices. All notices and other communications given or made pursuant to this SAFTE shall be in writing and shall be deemed effectively given upon the earlier of actual receipt, or: (i) personal delivery to the party to be notified, (ii) when sent, if sent by electronic mail during normal business hours of the recipient, and if not sent during normal business hours, then on the recipient's next business day, (iii) five days after having been sent by registered or certified mail, return receipt requested, postage prepaid, or (iv) one business day after deposit with a nationally recognized overnight courier, freight prepaid, specifying next business day delivery, with written verification of receipt. All communications shall be sent to the respective parties at: (a) in the case of the Company, the Company Address; and (b) in the case of the Investor, the Investor Address, or to such e-mail address, facsimile number or address as subsequently modified by written notice given in accordance with this Section 6.3.
- 6.4 Assignments. Neither this SAFTE nor the rights contained herein may be assigned or otherwise Transferred, by operation of law or otherwise, by either party without the prior written consent of the other; *provided, however*, that this SAFTE and/or the rights contained herein may be assigned without the Company's consent by the Investor: (i) to the Investor's estate, heirs, executors, administrators, guardians and/or successors in the event of Investor's death or disability, or (ii) any other entity who directly or indirectly, controls, is controlled by or is under common control with the Investor, including, without limitation, any general partner, managing member, officer or director of the Investor, or any venture capital fund now or hereafter existing which is controlled by one or more general partners or managing members of, or shares the same management company with, the Investor, provided, in each case, that each assignee first, as a condition precedent to the effectiveness of such assignment, enters into a joinder agreement, in form and substance reasonably satisfactory to the Company, personally making the representations set forth in Section 5 and agreeing to be bound by this SAFTE (including the lockup provisions of Section 3) and any and all documents and agreements described in Section 1.1(b); and *provided, further*, that the Company may assign this SAFTE in whole, without the consent of the Investor, in connection with a reorganization to change the Company's domicile, or to a parent entity of the Company. Any attempted or purported assignment, conveyance or transfer in breach or violation of this Section 6.4 or any other applicable restriction shall be null and void *ab initio*. Transferability of the Certificate Token requires the prior written consent of the Company, which may be granted by the Company making changes on the applicable blockchain system to enable the Certificate Token to become transferable on such blockchain system. Unless the Certificate Token has been voided, the Investor shall not make any transfer or assignment of this SAFTE or any rights under this SAFTE without transferring the Certificate Token to the same transferee or assignee. In the case of a transfer or assignment of the SAFTE by operation of law or that is otherwise involuntary and does not entail transfer of the Certificate Token, or with respect to which the transferee or assignee does not wish to or cannot accept the Certificate Token, the Investor and the transferee or assignee shall notify the Company as promptly as far as reasonably practicable in advance of (if possible) or (if advance notice is not possible) as promptly as reasonably practicable after such transfer or assignment, and, for the avoidance of doubt, the Company may void the Certificate Token, issue a new Certificate Token, switch this SAFTE to book-entry-only, or take any other reasonable good faith action to avoid any duplication of this SAFTE and the Certificate Token or any rights hereunder or thereunder and to ensure the accuracy of the books and records of the Company and outstanding Certificate Tokens in light of the transfer or assignment.
- 6.5 Amendments. This SAFTE is one of a series of similar instruments entered into by the Company from time to time. Any provision of this SAFTE may be amended, waived or modified by written consent of the Company and either (i) the Investor or (ii) investors representing a Majority-in-Interest; *provided, however* that with respect to clause '(ii)': (A) the Purchase Amount may not be amended, waived or modified in this manner and (B) such amendment, waiver or modification treats all such holders in the same manner as the consenting majority-in-interest. The Investor hereby agrees that, if any amendment, waiver or modification of this SAFTE is (A) approved by the written consents required for such amendment, waiver or modification, the Investor shall promptly (and in

any event within one business day of the Company's written request, accompanied by the relevant written consent of other Investors) execute and deliver to the Company such amendment or a written agreement setting forth such waiver or modification. The Investor hereby constitutes and appoints as the proxies of the Investor, and hereby grants a power of attorney to: (A) the Company, and (B) the President, Chief Executive Officer, or similar executive of the Company, and each of them, with full power and substitution, to execute any amendment, modification or waiver the Investor is required to execute pursuant to this Section 6.5 and fails to deliver within the required period of time. Each of the proxy and power of attorney granted in this Section 6.5 is being given in consideration of the agreements and covenants of the parties in connection with the transactions contemplated by this SAFTE and, as such, each is coupled with an interest, secures the proprietary interest of such donee and the performance of obligations owed to such donee and shall be irrevocable until this SAFTE terminates pursuant to its terms or is amended to remove or terminate the proxy and power of attorney. The Investor hereby revokes any and all previous proxies or powers of attorney with respect to the matters contemplated herein that may conflict or be inconsistent with the foregoing provisions and shall not hereafter, until this SAFTE terminates pursuant to its terms or is amended to remove or terminate the proxy and power of attorney, grant, or purport to grant, any other proxy or power of attorney which may conflict or be inconsistent with the foregoing provisions.

- 6.6 Delays and Omissions. No delay or omission to exercise any right, power, or remedy accruing to any party under this SAFTE, upon any breach or default of any other party under this SAFTE, shall impair any such right, power, or remedy of such nonbreaching or non-defaulting party, nor shall it be construed to be a waiver of or acquiescence to any such breach or default, or to any similar breach or default thereafter occurring, nor shall any waiver of any single breach or default be deemed a waiver of any other breach or default theretofore or thereafter occurring.
- 6.7 No Equity Rights. Other than for tax purposes as set forth below, the Investor is not entitled, as a holder of this SAFTE, to vote on, or receive equity-based rights (including dividend or voting rights), or be deemed the holder of Company Capital Securities for any purpose, nor will anything contained herein be construed to confer on the Investor, as such, any of the rights of a shareholder, stockholder or other holder of Capital Securities of the Company or any right to vote for the election of directors or upon any matter submitted to shareholders at any meeting thereof, or to give or withhold consent to any corporate action or to receive notice of meetings, or to receive subscription rights or otherwise. However, if the Company pays a dividend on outstanding Common Capital Securities (that is not payable in the same Common Capital Securities) while this SAFTE is outstanding, the Company will pay the Dividend Amount to the Investor at the same time.
- 6.8 Governing Law. All rights and obligations hereunder will be governed by the laws of the Governing Jurisdiction, without regard to the conflicts of law provisions of such jurisdiction.
- 6.9 Remedies Cumulative. All remedies, whether under this SAFTE or by law or otherwise afforded to any party, shall be cumulative and not alternative.
- 6.10 Severability. In the event any one or more of the provisions of this SAFTE is for any reason held to be invalid, illegal or unenforceable, in whole or in part or in any respect, or in the event that any one or more of the provisions of this SAFTE operate or would prospectively operate to invalidate this SAFTE, then and in any such event, such provision(s) only will be deemed null and void and will not affect any other provision of this SAFTE and the remaining provisions of this SAFTE will remain operative and in full force and effect and will not be affected, prejudiced, or disturbed thereby.
- 6.11 Tax. The parties acknowledge and agree that for income tax purposes this SAFTE is, and at all times has been, intended to be characterized as Common Capital Securities (specifically, common stock or ordinary shares, as applicable depending on the Company's jurisdiction of formation) (including, if the Company is a U.S. corporation, for purposes of Sections 304, 305, 306, 354, 368, 1036 and 1202 of the Internal Revenue Code of 1986, as amended). Accordingly, the parties agree to treat this SAFTE consistent with the foregoing intent for all income tax purposes (including, without limitation, on their respective tax returns or other informational statements).
- 6.12 Signature Counterparts. This SAFTE may be executed in any number of counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Counterparts may be delivered via facsimile, electronic mail or other transmission method, including blockchain systems records of private key signatures, and any counterpart so delivered shall be deemed to have been duly and validly delivered



and be valid and effective for all purposes, including that the parties shall be entitled to rely on any such electronic signature for the purposes of any applicable electronic signature laws.

6.13 Decimal Precision and Truncation. All token values in the smart contracts referred to herein are represented as uint256 integers with 18-decimal-place precision ( $10^{18}$ ). Percentages, multipliers and rates are stored with 4-decimal-place precision ( $10^4$ ). Precision of mathematic operations will be normalized to 18 decimals of precisions ( $10^{18}$ ) and any operations exceeding that will be truncated.

6.14 Rules of Construction.

- (a) *Singular/Plural, Gender; Etc.* For purposes of this SAFTE, whenever the context requires: the singular number shall include the plural, and vice versa; the masculine gender shall include the feminine and neuter genders; the feminine gender shall include the masculine and neuter genders; and the neuter gender shall include the masculine and feminine genders.
- (b) *Ambiguities.* The parties hereto agree that any rule of construction to the effect that ambiguities are to be resolved against the drafting party shall not be applied in the construction or interpretation of this SAFTE.
- (c) *No Limitation.* As used in this SAFTE, the words “include,” “including,” “such as” and variations thereof, shall not be deemed to be terms of limitation, but rather shall be deemed to be followed by the words “without limitation.” The word “or” shall mean the non-exclusive “or”.
- (d) *References.* Except as otherwise indicated, all references in this SAFTE to “Sections,” “Schedules” and “Exhibits” are intended to refer to Sections of this SAFTE and Schedules and Exhibits to this SAFTE.
- (e) *Hereof.* The terms “hereof,” “herein,” “hereunder,” “hereby” and “herewith” and words of similar import will, unless otherwise stated, be construed to refer to this SAFTE as a whole and not to any particular provision of this SAFTE.
- (f) *Captions.* The captions contained in this SAFTE are for convenience of reference only, shall not be deemed to be a part of this SAFTE and shall not be referred to in connection with the construction or interpretation of this SAFTE.
- (g) *Person.* The term “person” refers to any natural born or legal person, entity, governmental body or incorporated or unincorporated association, decentralized autonomous organization, multisignature-wallet/smart-contract-based council, partnership or joint venture.

## RESTRICTIVE LEGENDS

**RIA COMPLIANCE LEGEND.** THE CERTIFICATE TOKEN MAY NOT BE USED TO EFFECT A TRANSFER OR TO OTHERWISE FACILITATE A CHANGE IN BENEFICIAL OWNERSHIP OF THIS SAFTE WITHOUT THE PRIOR CONSENT OF THE COMPANY.

**REGULATION S LEGEND.** THIS INSTRUMENT AND THE CERTIFICATE TOKEN HAVE NOT BEEN, AND WILL NOT BE, REGISTERED UNDER ANY SECURITIES LAWS, INCLUDING THOSE OF THE UNITED STATES OF AMERICA. THIS INSTRUMENT AND THE CERTIFICATE TOKEN ARE ONLY BEING OFFERED FOR SALE OUTSIDE THE UNITED STATES OF AMERICA TO PERSONS OTHER THAN U.S. PERSONS IN OFFSHORE TRANSACTIONS MEETING THE REQUIREMENTS OF REGULATION S UNDER THE SECURITIES ACT (“REGULATION S”). AS USED HEREIN, THE TERMS “OFFSHORE TRANSACTIONS” AND “U.S. PERSON” HAVE THE MEANINGS GIVEN TO THEM IN REGULATION S. THIS AGREEMENT. THIS INSTRUMENT AND THE CERTIFICATE TOKEN ARE NOT PERMITTED TO BE OFFERED OR SOLD (INCLUDING OPENING A SHORT POSITION IN SUCH SECURITIES) IN THE UNITED STATES OR TO U.S. PERSONS AS DEFINED BY RULE 902(k) ADOPTED UNDER THE ACT, UNLESS THEY ARE REGISTERED UNDER THE SECURITIES ACT OF 1933 (THE “ACT”), OR AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE ACT IS AVAILABLE. YOU MAY RESELL SUCH SECURITIES ONLY PURSUANT TO AN EXEMPTION FROM REGISTRATION UNDER THE ACT OR OTHERWISE IN ACCORDANCE WITH THE PROVISIONS OF REGULATION S OF THE ACT, OR IN TRANSACTIONS EFFECTED OUTSIDE OF THE UNITED STATES PROVIDED YOU DO NOT SOLICIT (AND NO ONE ACTING ON YOUR BEHALF SOLICITS) PURCHASERS IN THE UNITED STATES OR OTHERWISE ENGAGE(S) IN SELLING EFFORTS IN THE UNITED STATES AND PROVIDED THAT HEDGING TRANSACTIONS INVOLVING THESE SECURITIES MAY NOT BE CONDUCTED UNLESS IN COMPLIANCE WITH THE ACT AND ALL OTHER APPLICABLE SECURITIES LAWS. A HOLDER OF THE SECURITIES WHO IS A DISTRIBUTOR, DEALER, SUB-UNDERWRITER OR OTHER SECURITIES PROFESSIONAL, IN ADDITION, CANNOT RESELL THE SECURITIES TO A U.S. PERSON AS DEFINED BY RULE 902(k) OF REGULATION S UNLESS THE SECURITIES ARE REGISTERED UNDER THE ACT OR AN EXEMPTION FROM REGISTRATION UNDER THE ACT IS AVAILABLE.

**CONTENTIOUS HARDFORK LEGEND.** IN THE EVENT THAT THE BLOCKCHAIN SYSTEM ON WHICH THE CERTIFICATE TOKEN WAS ORIGINALLY ISSUED UNDERGOES A PERSISTENT “CONTENTIOUS HARDFORK” (AS COMMONLY UNDERSTOOD IN THE BLOCKCHAIN INDUSTRY, RESULTING IN TWO INDEPENDENT BLOCKCHAIN SYSTEMS THAT ARE BOTH REASONABLY EXPECTED TO HAVE INDEPENDENT PERSISTENT COMMERCIAL VALUE), NO COPY OF THE CERTIFICATE TOKEN MAY BE OFFERED, SOLD, OR OTHERWISE TRANSFERRED, PLEDGED, OR HYPOTHECATED UNTIL THE COMPANY HAS DETERMINED, IN ITS SOLE AND ABSOLUTE DISCRETION, WHICH BLOCKCHAIN SYSTEM (AND WHICH CERTIFICATE TOKENS) TO TREAT AS CANONICAL, AND THEN ONLY THE CERTIFICATE TOKEN THUS DETERMINED BY THE COMPANY TO BE CANONICAL MAY BE OFFERED, SOLD, OR OTHERWISE TRANSFERRED, PLEDGED, OR HYPOTHECATED (TO THE EXTENT OTHERWISE PERMITTED). IN THE EVENT THAT THE BLOCKCHAIN SYSTEM DETERMINED BY THE COMPANY TO BE CANONICAL FOLLOWING A CONTENTIOUS HARDFORK ITSELF SUBSEQUENTLY UNDERGOES ANOTHER CONTENTIOUS HARDFORK, THIS RESTRICTIVE LEGEND SHALL LIKEWISE APPLY TO SUCH OTHER CONTENTIOUS HARDFORK, MUTATIS MUTANDIS.